

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

DECLARATION OF STEVEN W. BLOCK

I, Steven W. Block, declare as follows:

1. I am over the age of eighteen, have personal knowledge of the matters attested to herein, and am capable of testifying to them.
2. I am an attorney and the lead counsel for respondents Service by Air, Inc. (“SBA”) and Radiant Customs Services, Inc. in this proceeding.
3. At various times in January and February 2017, I contacted petitioner CMI Distribution Inc.’s then counsel, Jonathan Benner, with settlement offers and attempts to engage in a settlement dialogue to avoid FMC proceedings. Mr. Benner did not respond to my offers.
4. After the ALJ issued his Preliminary Decision in this matter, but before exceptions were filed initiating appellate proceedings before the Commission, I reached out to

CMI's current counsel with a substantial settlement offer on June 21, 2019. Again, CMI's counsel ignored the offer, forcing continued proceedings before the Commission.

5. I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

EXECUTED at Seattle, Washington this 22nd day of September, 2021.

A handwritten signature in black ink, appearing to read "Steven W. Block", written in a cursive style.

Steven W. Block

CERTIFICATE OF SERVICE

The undersigned declares that on the date stated below I caused to be served the foregoing document, upon the following in the manner of service indicated:

Brendan Collins
GKG Law, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 22nd day of September, 2021.



Alisa Flabel